

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

----- X
CARL CUSH,

Plaintiff,

-against-

Detective ERIC YEUNG, Shield No. 699;
Detective LOWEZ WALKER, Shield No. 4020;
UC # 007; Lieutenant STEPHEN CONFORTI;
Detective GINA GRIFFIN, Shield No. 246;
Detective SCOTT MARTIN, Shield No. 6182;
Detective ERIK NELSON, Shield No. 3197;
Detective GEORGE KATRIS, Shield No. 1168;
and JOHN and JANE DOE 8 through 10,
individually and in their official capacities (the
names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.
----- X

**FIRST AMENDED
COMPLAINT**

13 CV 4827 (MKB) (VVP)

Jury Trial Demanded

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiff Carl Cush (“plaintiff” or “Mr. Cush”) is a resident of Queens County in the City and State of New York.

7. Defendant Detective Eric Yeung, Shield No. 699 (“Yeung”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Yeung is sued in his individual and official capacities.

8. Defendant Detective Lowez Walker, Shield No. 4020 (“Walker”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Walker is sued in his individual and official capacities.

9. Defendant UC # 007, at all times relevant herein, was an officer, employee and agent of the NYPD. Plaintiff does not know the real name or shield number of defendant UC # 007. Defendant UC # 007 is sued in his individual and official capacities.

10. Defendant Lieutenant Stephen Conforti (“Conforti”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Conforti is sued in his individual and official capacities.

11. Defendant Detective Gina Griffin, Shield No. 246 (“Griffin”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Griffin is sued in her individual and official capacities.

12. Defendant Detective Scott Martin, Shield No. 6182 (“Martin”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Martin is sued in his individual and official capacities.

13. Defendant Detective Erik Nelson, Shield No. 3197 (“Nelson”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Nelson is sued in his individual and official capacities.

14. Defendant Detective George Katris, Shield No. 1168 (“Katris”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Katris is sued in his individual and official capacities.

15. At all times relevant defendants John and Jane Doe 8 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 8 through 10.

16. At all times relevant herein, defendants John and Jane Doe 8 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 8 through 10 are sued in their individual and official capacities.

17. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

18. At approximately 9:00 p.m. on October 23, 2012, Mr. Cush was a lawful passenger in an automobile traveling in the vicinity of Jamaica Avenue and 202nd Street in Queens, New York.

19. The defendant officers pulled over the vehicle without probable cause or reasonable suspicion to believe any crime or offense had been committed.

20. Mr. Cush was unlawfully searched and no contraband was recovered from him.

21. Even though the defendant officers knew that Mr. Cush had committed no crime or offense and they lacked probable cause, they handcuffed and falsely arrested him.

22. Mr. Cush was taken to a police precinct.

23. At the precinct the officers falsely informed employees of the Queens County District Attorney's Office that they had observed Mr. Cush in possession of a

controlled substance and prepared false paperwork to that effect, including an arrest report.

24. At no point did the officers observe plaintiff possess a controlled substance or commit any crime or offense.

25. Plaintiff was then taken to Queens Central Booking.

26. After spending approximately 21 hours in custody, plaintiff was arraigned and released on his own recognizance.

27. The criminal charges against plaintiff were subsequently adjourned in contemplation of dismissal.

28. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, anxiety, embarrassment, humiliation, lost wages, loss of employment and damage to his reputation.

FIRST CLAIM
Unlawful Stop and Search

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

31. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM

False Arrest

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

34. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM

Denial Of Constitutional Right To Fair Trial

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. The individual defendants created false evidence against plaintiff.

37. The individual defendants forwarded false evidence to prosecutors in the Queens County District Attorney's office.

38. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's right to a fair

trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM
Failure To Intervene

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

42. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

43. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: February 10, 2014
New York, New York

HARVIS WRIGHT & FETT LLP

A handwritten signature in black ink, appearing to read 'Gabriel Harvis', is written over a horizontal line.

Gabriel Harvis
305 Broadway, 14th Floor
New York, New York 10007
(212) 323-6880
gharvis@hwandf.com

Attorneys for plaintiff